

****Deliberation SAN-2023-016 of November 9, 2023****

****National Commission for Information Technology and Liberties****

****Nature of the deliberation: Sanction****

****Legal status: In force****

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Deliberation of the restricted formation No. SAN-2023-016 of November 9, 2023, concerning the Ministry of Transformation and Public Function and the Ministry of Economy, Finance, and Industrial and Digital Sovereignty.

The National Commission for Information Technology and Liberties, convened in its restricted formation composed of Mr. Alexandre LINDEN, President, Mr. Philippe-Pierre CABOURDIN, Vice-President, Ms. Christine MAUGÜÉ and Ms. Isabelle LATOURNARIE-WILLEMS, and Mr. Bertrand du MARAIS, members;

****Considering**** Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of personal data and on the free movement of such data;

****Considering**** Directive 2002/58/EC of the European Parliament and of the Council of July 12, 2002, concerning the processing of personal data and the protection of privacy in the electronic communications sector;

****Considering**** Law No. 78-17 of January 6, 1978, relating to information technology, files, and freedoms, particularly its articles 20 and following;

****Considering**** Decree No. 2019-536 of May 29, 2019, amended, taken for the application of Law No. 78-17 of January 6, 1978, relating to information technology, files, and freedoms;

****Considering**** Deliberation No. 2013-175 of July 4, 2013, adopting the internal regulations of the National Commission for Information Technology and Liberties;

****Considering**** the decision of the President of the National Commission for Information Technology and Liberties designating a rapporteur before the restricted formation, dated June 13, 2023;

****Considering**** the report of Ms. Sophie LAMBREMONT, reporting commissioner, notified on June 22, 2023:

- to the Ministry of Transformation and Public Function;

- and to the Ministry of Economy, Finance, and Industrial and Digital Sovereignty;

****Considering**** the written observations submitted by the Ministry of Transformation and Public Function on July 20, 2023;

****Considering**** the other documents in the file;

****Present**** during the session of the restricted formation on October 5, 2023:

- Ms. Sophie LAMBREMONT, commissioner, heard in her report;

****As representatives of the ministries:****

- Mr. [...] ;

- Mr. [...].

The representatives of the Ministries of Transformation and Public Function and of Economy, Finance, and Industrial and Digital Sovereignty having spoken last;

The restricted formation adopted the following decision:

****I. Facts and Procedure****

1. The National Commission for Information Technology and Liberties (hereinafter "the CNIL" or "the Commission") was seized of 1590 complaints regarding the receipt on January 26, 2023, of an email sent from the email address "ne-pas-repondre@dgfip.finances.gouv.fr" with the subject "Pension Reform: Message from Stanislas Guerini to Public Function Agents." The email contained a link to a video lasting 6 minutes and 36 seconds titled "Pension Reform: Message from Stanislas Guerini to Public Function Agents," in which the Minister of Transformation and Public Function spoke.

2. The complaints targeted the Ministry of Economy, Finance, and Industrial and Digital Sovereignty (hereinafter "Ministry of Economy") and the Ministry of Transformation and Public Function. In general, the complainants described the email they received as "political communication," and the use by the

General Directorate of Public Finances (DGFIP) of their personal data for sending this email by the Ministry of Transformation and Public Function. Furthermore, some complainants claimed to have received the email even though they are no longer public agents.

3. By email from

Ministry of Transformation and Public Service, as well as the Ministry of Economy, Finance and Recovery, are joint controllers of the processing in question. This conclusion is based on the fact that both ministries jointly determined the purposes and means of the processing of public agents' email addresses for the purpose of sending the email dated January 26, 2023, titled "Pension Reform: Message from Stanislas Guerini to Public Service Agents."

B- On the breach of Article 5(1)(b) of the General Data Protection Regulation (GDPR)

16. Article 5(1)(b) of the GDPR states that personal data shall be collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes. The rapporteur notes that the processing of public agents' email addresses for the purpose of sending the email in question does not meet the requirements of this provision.

17. The rapporteur highlights that the email sent on January 26, 2023, was not related to the original purpose for which the email addresses were collected. The processing of these email addresses for the purpose of disseminating information regarding pension reform constitutes further processing that is incompatible with the original purposes.

C- On the proposed measures

18. In light of the findings regarding the breach of Article 5(1)(b) of the GDPR, the rapporteur recommends that the restricted formation issue a reprimand to the ministries involved. This reprimand should serve as a reminder of the importance of ensuring that personal data is processed in accordance with the principles set out in the GDPR.

19. Furthermore, the rapporteur suggests that the decision be made public, with the stipulation that the identification of the ministries involved should not be possible after a period of two years from the date of publication.

D- Conclusion

20. The rapporteur concludes that the processing of public agents' email addresses for the purpose of sending the email dated January 26, 2023, constitutes a breach of Article 5(1)(b) of the GDPR. The rapporteur recommends that the restricted formation take appropriate measures to address this breach and ensure compliance with data protection regulations in the future.

****Ministry of Economy must be regarded as jointly responsible for the processing in question, given on the one hand, that these are two fully-fledged ministries and on the other hand, the elements communicated by the DPO regarding the respective roles of the DGAFP and the DGFIP in sending the disputed email to "State agents".****

16. In defense, the ministries do not contest their joint responsibility.

17. Firstly, the restricted panel notes that it emerges from the email exchanges between the two directorates that the DGAFP requested on January 16, 2023, the State Retirement Service (SRE) of the DGFIP to send a communication to State agents "on the measures included in the pension reform bill currently being prepared," specifying that this would take the form of two distinct messages, "one for active agents, the other for pensioners," before ultimately retracting its request by an email on January 18, 2023, stating "Ultimately, it is about addressing only the active agents." The same exchanges show that the DGAFP transmitted to the DGFIP the message to be sent to active agents, posing the following questions: "Is it possible to embed the video so that it can be viewed in the email?" and "What statistics could you obtain? We will particularly request the open rate, the viewing rate of the video, and even the number of clicks on the attached ppt if possible." It thus appears that the DGAFP, wishing to address a communication to active State agents regarding the pension reform, defined the purposes of the processing. Then, by requesting the DGFIP for the sending of the email

and providing it with instructions regarding the content and form of the communication, the DGAFP defined the means of the processing. The restricted panel also notes that it emerges from the exchanges between the DGFIP and the DGAFP on January 23, 2023, that the DGFIP conducted technical tests in view of sending the email and that it "gave the functional go-ahead for a mass mail send on Thursday, January 26."

18. The restricted panel thus considers that the Ministry of Transformation and Public Service, through the DGAFP, participated in determining the purposes and means of the processing.

19. Secondly, Article 1 of Decree No. 2022-1446 of November 21, 2022, setting the terms of the processing of ENSAP states that "the General Directorate of Public Finances implements the automated processing of personal data called 'ENSAP.'"

20. If Decree No. 2022-842 of June 1, 2022, relating to the powers of the Minister of Transformation and Public Service provides for a functional authority of this minister over the DGFIP, for "matters relating to public budgetary and accounting management and the State's real estate policy," it results from the writings of the DPO that the administration believes that the action of the DGFIP for sending this message exceeded this framework and that its action then fell under the authority of the Minister of Economy. The restricted panel also considers that by using the ENSAP file and determining certain means of the processing in question, the Ministry of Economy, through the DGFIP, also determined the purposes and means of the processing.

21. The restricted panel considers, in light of these elements, that the Ministry of Transformation and Public Service and the Ministry of Economy must be regarded as jointly responsible for the processing in question.

****B - On the failure to comply with the obligation to process data in a manner compatible with the purposes for which they were collected in accordance with Article 5, paragraph 1, b) of the GDPR.****

22. Article 5.1.b) of the GDPR states that "Personal data must be: / (...) collected for specified, explicit, and legitimate purposes, and not further processed in a manner... **

incompatible with these purposes; (...)" 23. The

reporter notes that the email addresses used in the context of the processing in question are those collected under decree no. 2022-1446 of November 21, 2022, setting out the modalities for the processing of the ENSAP and that they have been processed in a manner incompatible with the purposes provided for by said decree to send a message related to political communication. 24. In defense, the ministries argue that the SRE, which operates the ENSAP processing within the DGFIP, "ensures the information of nationals of the civil and military state pension scheme, particularly regarding the right to information on pensions," and that it has thus acted within its public interest mission of information. They indicate that they are taking note of the reactions triggered by the communication in question and that a survey of the contact details of users who have expressed a desire to no longer receive information from the ENSAP has been carried out so that they can be excluded from any future communications. Furthermore, an evolution of the ENSAP interface, scheduled for December 2023, will allow users to directly refuse the receipt of informational emails. 25. The ministries then contest the qualification of political communication retained by the reporter, asserting in particular that the user had the choice to watch or not watch the video attached to the email, and that "the sending was not intended to promote the reform project, but rather to inform, as an employer, public agents about the specific issues concerning them and the very concrete impact that could result for them." In this regard, the ministries consider that the various topics addressed in the video (such as the consideration of the hardship of so-called active categories or the explanations provided on progressive retirement) as well as the PowerPoint were purely informational, without the format of the speech by the minister himself constituting a characteristic element of political communication, the Minister of Transformation and Public Service being able, as a public employer, to address directly and personally all public agents on all administrative and human resources management issues. 26. Firstly, the restricted panel notes that, as indicated by the DPO of the two ministries to the CNIL services, the email addresses used in the context of the processing in question

are derived from a contemporary extraction of the ENSAP and relate to active agents. The restricted panel recalls that when a processing operation is governed by a regulatory act, its purposes can only be those authorized by that act.²⁷ According to Article 1 of decree no. 2022-1446 of November 21, 2022, setting out the modalities for the processing of the ENSAP, "this processing aims to provide public agents with a secure digital space offering personalized services related to state pensions, payroll, and the elections of staff representatives in the state public service. In this regard, it allows the public agent: 1° To have a tool for exchange and communication with the administration; 2° To have a space for archiving documents related to state pensions (...) and payroll." It follows from these provisions that the processing in question only allows the administration to send emails to public agents informing them that a document is available on the ENSAP platform in order to offer them personalized services.²⁸ Secondly, the restricted panel recalls that automated processing of personal data of public agents whose purpose is limited, by the regulatory act governing them, to administrative communication, cannot be used for political communication (CNIL, FR, September 3, 2020, Sanction, n°SAN 2020-005, published; CNIL, FR, September 3, 2020, Sanction, n°SAN 2020-006, published; CNIL, FR, July 24, 2018, Sanction, n°SAN 2018-007, published). It notes that the email dated January 26, 2023, in question is signed by the Minister of Transformation and Public Service and refers, in particular, to a video containing an official speech from him presenting the pension reform. The restricted panel notes that this video contains - as indicated by the ministries - concrete details on how the pension system would be expected to evolve, as well as the PowerPoint titled "For Our Pensions: A Project of Justice, Balance, and Progress." However, this sending occurs shortly after the Minister's presentation in January 2023 of the proposed reform, and before the adoption of the project by Parliament. The restricted panel also considers that certain terms used and the general content of the message aim to convince of the necessity and legitimacy of the reform: "We need to work longer to preserve our pay-as-you-go pension model"; "Our pay-as-you-go system, to which we are all attached [...] protects the most vulnerable"; the measures are described as "measures of justice, of progress"; finally, the reform "will allow us very concretely, I hope I have demonstrated this to you with some very concrete points, to improve our system without hiding the fact that yes, we are asking for an effort from each of you and for that, I want to thank you." Finally, unlike what is usually done for communications via ENSAP (for reasons of IT security), the email received by the agents did not invite them to consult a message in ENSAP, but contained the message with a link to a video hosted on a third-party service. 29. Thus, contrary to what the ministries argue, the email signed by the Minister, the format of the video, and the general content of the message do not correspond to a communication between public agents and their administration. While it is permissible for the administration to communicate to its agents all necessary information for the exercise of their mission or related to their status as public agents, it can only do so in compliance with the provisions governing the files it uses. More generally, respect for the principle of purpose implies that the processing established for the needs of public service or the employment of public agents should not be used for political communication purposes directed at public agents. The restricted panel believes that, in this case, the approach falls under a political communication action by one of the ministers responsible for the said reform.

30. The restricted panel concludes that the ENSAP file has been used for political communication purposes and that the processing in question does not correspond to the purpose provided for by the decree establishing this processing of "communication between the agent and the administration." The use of ENSAP for sending these messages therefore disregards Article 1 of Decree No. 2022-1446 of November 21, 2022, which sets the purposes of the processing.

31. It follows from the above that by using the email addresses of active public agents collected under the ENSAP processing to communicate about the pension reform, the Ministry of Transformation and Public Service and the Ministry of Economy, Finance and Industrial and Digital Sovereignty, jointly responsible for the processing, have processed the said personal data in a manner incompatible with the purpose of the collection, in violation of Article 5.1.b) of the GDPR.

II. On the corrective measure and its publicity

32. Under III of Article 20 of the amended Law of January 6, 1978: "When the data controller or its processor does not comply with the obligations arising from Regulation (EU) 2016/679 of April 27,

2016...

****Translation:****

Pursuant to this law, the president of the National Commission for Information Technology and Liberties may also, if applicable after having sent the warning provided for in I of this article or, if applicable, in addition to a formal notice provided for in II, refer the restricted formation of the commission with a view to the pronouncement, after adversarial proceedings, of one or more of the following measures: 1° A reprimand; [...]

33. By virtue of 7° of III of Article 20 of the amended law of January 6, 1978, in cases where the processing of personal data is carried out by the State, an administrative fine cannot be imposed.

34. The rapporteur proposes to the restricted formation that a reprimand be issued against the Ministry of Transformation and Public Service and the Ministry of Economy, Finance, and Industrial and Digital Sovereignty. She also proposes that this decision be made public.

35. The ministries contest the existence of a breach.

36. The restricted formation considers that, in this case, the breach committed justifies the issuance of a reprimand against the ministries for the following reasons.

37. The restricted formation notes the particularly significant number of individuals concerned, with the email addresses of 2,346,303 individuals having been used to send them this communication.

38. Given the nature of the joint data controllers who hold public authority prerogatives, the restricted formation deems it necessary to raise the awareness of the ministries regarding the use of personal data held by the administration in the context of its missions, and whose processing must comply with the applicable legal and regulatory framework.

39. Finally, and for the same reasons, the restricted formation considers it necessary for its decision to be made public. It notes, in this regard, that the public has shown, over the past months, a strong interest in issues related to the processing of its personal data by the State, as evidenced by the unprecedented number of complaints received following this communication.

****FOR THESE REASONS****

The restricted formation of the CNIL, after deliberation, decides to:

- Pronounce, in light of the breach constituted by Article 5-1-b) of Regulation (EU) No. 2016/679 of April 27, 2016, relating to the protection of personal data:
 - a reprimand against the Ministry of Transformation and Public Service;
 - a reprimand against the Ministry of Economy, Finance, and Industrial and Digital Sovereignty;
- Make public, on the CNIL website and on the Légifrance website, its deliberation, which will no longer specifically identify the ministries after a period of two years from its publication.

President Alexandre LINDEN

This decision is subject to appeal before the Council of State within two months from its notification.